

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF OHIO
WESTERN DIVISION

AMERICAN COLLOID
COMPANY,

Plaintiff/
Counter-Defendant,

vs.

JUDGE: ZOUHARY
CASE NO. 3:22-CV-01342

FIRE STAR ENERGY
RESOURCES, LLC,

Defendant/Counterclaimant.

Videotaped Videoconferenced Deposition of
DWAYNE JONES

Thursday, August 17, 2023
11:01 A.M. EDT

Taken via videoconference
Witness location:
Lexington, Kentucky

REPORTER: Pamela S. Greenfield, RDR, CRR

JOB NO. 6029350

1 APPEARANCES (REMOTE):
2

3 Barry D. Hunter, Esq.
4 Frost, Brown, Todd, L.L.C.
5 Lexington Financial Center
6 Suite 2800
7 250 West Main Street
8 Lexington, Kentucky 40507
9 (859) 231-0000
10 Bhunter@fbtlaw.com,
11 On behalf of the Plaintiff and
12 the Witness;

13 Sarah K. Rathke, Esq.
14 Lauryn B. Durham, Esq.
15 Squire Patton Boggs LLC
16 4900 Key Tower
17 127 Public Square
18 Cleveland, Ohio 44114
19 (216) 479-8500
20 Sarah.rathke@squirepb.com
21 Lauryn.durham@squirepb.com,

22 On behalf of the Defendant.
23
24
25

ALSO PRESENT:

17 Pete Zinkan, Videographer
18 Clint Thomas, Concierge
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BY MS. RATHKE

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1
2 THE VIDEOGRAPHER: Good morning.
3 We are going on the record. It is 11:01
4 a.m. Today's date is August 17th of 2023.
5 This is Media Unit 1 of the video recorded
6 deposition of Dwayne Jones being taken by
7 counsel for the plaintiff in the matter of
8 American Colloid Company versus Fire Star
9 Energy Resources, LLC.

10 This case is filed in the United
11 States District Court for the Northern
12 District of Ohio Western Division. The
13 case number is 3:22-CV-01342.

14 This deposition is being taken
15 remotely. The witness is located in
16 Kentucky. Lexington, Kentucky.

17 My name is Peter Zinkan, the
18 videographer representing Veritext. The
19 court reporter is Pamela Greenfield, court
20 reporter, also representing Veritext.

21 At this time the attorneys may
22 state their appearances for the record,
23 whom they're representing and the reporter
24 may give the oath.

25 MS. RATHKE: Sure. Sarah Rathke

1 and Lauryn Durham for the plaintiff.

2 MR. HUNTER: Barry Hunter for
3 Fire Star, the defendant, as well as for
4 the witness.

5 - - - -

6 DWAYNE JONES, of lawful age, called by the
7 Defendant for the purpose of cross-examination,
8 as provided by the Rules of Civil Procedure,
9 being by me first duly sworn, as hereinafter
10 certified, deposed and said as follows:

11 CROSS-EXAMINATION OF DWAYNE JONES

12 BY MS. RATHKE:

13 Q. Okay. Thank you.

14 Could you please state and spell your full
15 name for the record.

16 A. D-W-A-Y-N-E. Jones. J-O-N-E-S.

17 Q. And date of birth, sir?

18 A. 8/18/62.

19 Q. And what's your residential address?

20 A. Corbin, Kentucky.

21 Q. What's the actual address?

22 A. 121 Mockingbird Hill Lane.

23 Q. What's the town?

24 A. Corbin, C-O-R-B-I-N.

25 Q. All right. And how long have you been at that

1 address?

2 A. 30-plus years.

3 Q. Are you currently employed?

4 A. Yes.

5 Q. And by whom?

6 A. By, I'm self-employed.

7 Q. All right. And what's the name of your company?

8 A. Fire Star Energy.

9 Q. And are you an owner of Fire Star Energy?

10 A. I'm a member/part owner, yes, ma'am.

11 Q. All right. What's your percentage ownership?

12 A. 50 percent.

13 Q. And you are not the managing member, correct?

14 That's your brother?

15 A. That's correct.

16 Q. Are you older or is he older?

17 A. I'm actually older but I tell everybody he's
18 older.

19 Q. All right. How long --

20 A. Way older.

21 Q. How long has Fire Star been in business?

22 A. The company Fire Star itself, let's see, probably
23 15, 16 years.

24 Q. And is that, are there predecessor companies?

25 A. I've been in the coal business over 30-plus years

1 myself.

2 Q. Tell me about that.

3 A. Just, you know, graduated from college with a
4 degree in business administration and slash
5 engineering and I just, just started in the coal
6 business. My family, you know, was in the coal
7 business so I kind of, kind of moved in the,
8 moved in that direction and kind of been doing it
9 ever since.

10 Q. And how did you and your brother come to acquire
11 or start Fire Star?

12 A. We didn't acquire. We just started it. We
13 didn't acquire the company. We just started it.

14 Q. All right. And when did you do that?

15 A. Like I said, 15, 16 years ago probably.

16 Q. And have there been different Fire Star entities,
17 like business entities over the years?

18 A. I don't understand the question.

19 Q. All right. The full name of the company right
20 now is Fire Star Energy Resources LLC; is that
21 right?

22 A. That's correct.

23 Q. All right. Did it ever go by any other name?

24 A. Not that I'm aware of.

25 Q. And how long have, has Fire Star done business

1 with ACC?

2 A. Oh, a long time.

3 Q. Tell me about a long -- what's a long time for
4 you?

5 A. Just ten years plus probably, eight to ten years.

6 Q. And over that period of time, what plants has
7 Fire Star supplied coal to ACC for?

8 A. The Archbold plant only.

9 Q. How did that relationship start?

10 A. The relationship started, we were actually
11 shipping the coal through a broker in the
12 beginning and he passed away and ACC, you know,
13 contacted us, wanted us to continue to do the
14 business so we naturally did.

15 Q. And has the coal product that you supplied ACC
16 with at the Archbold plant, has that remained the
17 same over time?

18 A. Yeah, pretty much, yeah.

19 Q. And who do you deal with at ACC?

20 A. I have dealt with, Tom Reed was the initial buyer
21 at ACC. I dealt with him more than anybody. Had
22 conversations with Neil at the plant. Had a
23 couple conversations with, is it Aric Wentz? I
24 think that's it, Wentz?

25 Q. Yep. You got it. W-E-N-T-Z?

1 A. Yeah. Yeah. And then a few conversations with
2 Mark Wagner and neither one of those have been
3 there that long. They've only been there a year
4 or two, so...

5 Q. So is it, just based on what you're saying, is it
6 accurate to say in the 2021, 2022 time frame the
7 person at ACC whom you would have had the most
8 interaction with is Neil Miller?

9 A. Probably Neil and Mark Wagner, yes.

10 Q. And let me take a step back and ask: Do you have
11 an operational title? I mean I know that you're
12 the owner; but operationally do you have a title
13 at Fire Star?

14 A. No.

15 Q. Okay. What are your responsibilities?

16 A. What are my responsibilities. Well, to make sure
17 I guess everything, you know, runs as normal as
18 possible. I don't handle any of the billing or
19 paperwork or anything like that. That's done by
20 Tim, so I couldn't help you, couldn't help you --
21 anything about that, I really couldn't help you
22 on.

23 Q. Okay. So to paraphrase what your brother told
24 us, I think he said he handles the financial
25 aspects and you handle sort of the operational

1 aspects.

2 Would you agree with that characterization?

3 A. Pretty much, yes, yes.

4 Q. In 2021 and 2022, had you had any other
5 employment other than working for Fire Star?

6 A. No.

7 Q. How about did you own any businesses other than
8 Fire Star?

9 A. Meaning? I don't understand the question.

10 Q. Are you the owner of any other businesses other
11 than Fire Star currently?

12 A. I'd have to refer to counsel on that.

13 MR. HUNTER: Why do you care
14 about that?

15 MS. RATHKE: I don't know that
16 I -- I don't know. I was just kind of
17 curious as to the guy's background, basic
18 background.

19 MR. HUNTER: Yeah, but I guess he
20 doesn't want to tell you about his other
21 businesses and I mean, I don't see how it's
22 relevant to anything in the case.

23 BY MS. RATHKE:

24 Q. In 2021 and 2022, did you spend any of your
25 professional time on any other business endeavors

1 other than Fire Star?

2 A. Again, I don't see the relevance in that.

3 MR. HUNTER: No. You can answer.

4 A. My answer would be yes. I mean...

5 Q. Okay. How many hours a week in 2021 and 2022 did
6 you dedicate to Fire Star?

7 A. Well, I'm not on a time clock so I don't keep up
8 with the hours. It's a 24/7 job.

9 Q. Okay. Would you say that you devoted 40 hours a
10 week or more in 2021 and 2022 to your work at
11 Fire Star?

12 A. Sure.

13 Q. Well, I mean while it's kind of like we're
14 conversating here, we're not really.

15 A. I mean, I don't clock in and clock out, if that's
16 what you're asking. So as far as giving you
17 exact hours I work, I, you know, it's -- I don't
18 see the relevance in that, with what that has to
19 do with this.

20 Q. All right. Well, when you're not working, or in
21 2021 and 2022 when you weren't working for Fire
22 Star, what other companies or business interests
23 were you working for?

24 MR. HUNTER: That, I mean he's
25 already told you he doesn't want to answer

1 it.

2 MS. RATHKE: Well, I'm not really
3 giving him a choice.

4 MR. HUNTER: Well, okay. Then
5 we're choosing not to have him answer it
6 unless you can tell me what it has to do
7 with anything in this case.

8 MS. RATHKE: Yes. It has to do
9 with his dedication to and attention to
10 fulfillment of this contract.

11 MR. HUNTER: Okay. I hear you
12 and I'm going to object and instruct him
13 not to answer.

14 MS. RATHKE: Okay. We'll mark
15 that, then.

16 MR. HUNTER: Well, let me take a
17 break, and give me a minute. Okay?

18 MS. RATHKE: Sure.

19 THE VIDEOGRAPHER: This is the
20 videographer. We're going off the record
21 at 11:12.

22 - - - -

23 (Thereupon, a discussion was had off the
24 record.)

25 - - - -

1 THE VIDEOGRAPHER: This is the
2 videographer. We are back on the record.
3 It is 11:14. You may proceed. Thank you.

4 Q. Okay. You're apparently willing to tell me some
5 of the information about what other professional
6 endeavors you're engaged in, so let me just let
7 you tell me what you're willing to tell me.

8 A. Well, I mean I have other business interests over
9 the years. I have rental properties and things
10 of that nature but it has nothing to do with Fire
11 Star.

12 Q. All right. Well, how much time do you spend
13 managing those other businesses and rental
14 properties?

15 A. Approximately, I don't know, you know, ten hours
16 a week. I mean 90 percent of my time is devoted
17 to Fire Star, so...

18 Q. I mean, can I ask are these legal business
19 ventures?

20 A. Absolutely, yes. And I don't appreciate the
21 question.

22 Q. Okay. And are they operated under official,
23 officially established and filed business
24 entities?

25 MR. HUNTER: Okay. We're done,

1 Sarah. I mean, let's move on to the case.

2 MS. RATHKE: Are you terminating
3 the deposition?

4 MR. HUNTER: No. No. I'm just
5 terminating this line of questioning.

6 MS. RATHKE: All right. We'll
7 mark this, too.

8 MR. HUNTER: Okay. Good.

9 BY MS. RATHKE:

10 Q. All right. When you're working at Fire Star
11 physically, in what location do you work?

12 A. We have an office in London.

13 Q. Is that where you work?

14 A. Yeah. We have an office in London, Kentucky and
15 our facility's in Manchester, Kentucky.

16 Q. Where do you work?

17 A. In London, in Manchester, travel throughout all
18 southeastern Kentucky.

19 Q. Okay. And how much of your time do you spend at
20 Manchester?

21 A. Probably half of the time.

22 Q. All right. How much time at London?

23 A. 20 percent of the time.

24 Q. And what's the other 30 percent time spent doing?

25 A. Delivering -- talking to customers, going,

1 winning, trying to get new business, going to the
2 mines, going to the facilities, meeting clients.

3 Q. And I'm told by your brother that the coal that
4 was supplied to ACC came from a mine owned by
5 Lipari, L-I-P-A-R-I; is that correct?

6 A. Yes.

7 Q. Have you ever been there?

8 A. Yes.

9 Q. All right. Did the ACC coal always come from
10 that mine?

11 A. Yes.

12 Q. Did it ever come from any other locations?

13 A. Not that I'm aware of. Not recently, no.

14 Q. And, you know, why do you source it from Lipari?

15 A. I don't understand the question. Why. I mean
16 they're just another company, they're one of the
17 companies that we source coal from.

18 Q. How many companies do you source from?

19 A. Several.

20 Q. More than five?

21 A. Probably.

22 Q. More than ten?

23 A. I'd have to look and see. I mean I don't, again,
24 have an exact number but --

25 Q. More than 20?

1 A. No.

2 Q. And in 2021 and 2022, you supplied to ACC.

3 How many other customers did you have?

4 A. I would have to go back and look. I don't have
5 that information in front of me. Probably a, I
6 don't know, a half a dozen.

7 Q. And by approximate percentage, you know, what
8 was, how big of a customer was ACC?

9 A. Tons-wise?

10 Q. Yeah, sure.

11 A. One percent.

12 Q. Did you say one?

13 A. One percent probably.

14 Q. I'm sorry, I just didn't hear the number.

15 A. One percent.

16 Q. All right. And did you supply any other of your
17 customers from the Lipari mine in 2021 and 2022?

18 A. No.

19 Q. In 2021 and 2022 was Fire Star making a profit
20 off of its sales to ACC?

21 A. I would have to go back and look and see. I
22 couldn't, couldn't tell you exactly.

23 Q. And what would you look at to determine that
24 information?

25 A. I'd have to get with Tim. I don't keep up with

1 any of that. I mean I can't recollect what was
2 made or not made.

3 Q. All right. So fair to say at one percent of the
4 tonnage business, ACC was not a very big customer
5 from Fire Star's perspective?

6 A. They were a very important customer, yes, because
7 we had serviced them for years, but volume-wise
8 they were, they were not very much volume for us
9 but they were very important because we had them
10 for a long time. A good relationship for many
11 years.

12 Q. And fair to say in 2021 and 2022 you acted as a
13 broker for the coal that was supplied to ACC?

14 A. No. No, we're -- no, we supplied the coal.

15 Q. Okay. You didn't own the mine that supplied the
16 coal, correct?

17 A. No. We have, we have different, we have contract
18 miners.

19 Q. All right.

20 A. Yeah.

21 Q. And what do you mean by "contract miners"
22 exactly?

23 A. In other words we have a vested interest in the
24 mine and they supply the coal, the coal to us at
25 a certain price.

1 Q. And what do you mean by "vested interest"?

2 A. We've either helped them out financially with
3 equipment or money or something to acquire those
4 resources to secure that, that tonnage of coal,
5 you know, off that permit for orders that we have
6 or we're trying to get.

7 Q. Okay. With regard to Lipari does Fire Star have,
8 does Fire Star or do you personally or your
9 brother have an ownership in Lipari?

10 A. No.

11 Q. What vested interest did Fire Star have in
12 Lipari?

13 A. I'm sorry?

14 Q. What -- I mean you used the words "vested
15 interest." What vested interest specifically
16 does Fire Star have with Lipari?

17 A. Well, we have a, the load-out where we load out,
18 they own and we do a throughput agreement with
19 them and we've actually purchased that facility
20 from them, so...

21 Q. And which facility is that?

22 A. Manchester.

23 Q. Oh, okay. All right. That used to be owned by
24 Lipari.

25 Is that what you're saying?

1 A. That's correct.

2 Q. All right. When did you purchase that facility?

3 A. '22.

4 Q. Okay. Recently then. Fair?

5 A. Yeah. Within the last year or so, yeah.

6 Q. And prior to 2022 were you renting the London --
7 the Manchester facility from Lipari or how did
8 that work?

9 A. It was just a throughput agreement based on a
10 tonnage, per ton fee.

11 Q. And currently does Fire Star do any business with
12 Lipari?

13 A. Yeah, occasionally, yeah, sure.

14 Q. Okay. I guess I'm asking, you know, when the
15 contract or when the relationship with ACC was
16 done, you know, since then what do you use Lipari
17 for?

18 A. They have other mines and other facilities and
19 so, yeah, we're, you know, we talk to them all
20 the time.

21 Q. Do they supply for your other customers?

22 A. Some of them.

23 Q. Okay. How many other customers do they supply
24 for?

25 A. I mean I don't know. I mean I wouldn't have any

1 idea.

2 Q. Would -- did they supply for other customers in
3 2021 and 2022?

4 MR. HUNTER: You mean from any of
5 their mines?

6 A. For any of our mines or this mine? They have
7 more than one mine.

8 Q. From any other mine?

9 A. Sure. Yeah.

10 Q. And how about from the specific mine that
11 supplied ACC?

12 A. No.

13 Q. And what do you call the mine that supplied
14 specifically ACC?

15 A. We call it B&W.

16 Q. B-N-W? {sic}

17 A. Uh-huh.

18 Q. Does that stand for something?

19 A. I think it's just an old name that they inherited
20 years ago when they purchased the facility. I
21 mean, I have no idea what it stands for but it's
22 a name that they have used for years.

23 Q. And when was the last name that you were at the
24 B&W mine?

25 A. The particular one that supplied this coal?

1 Q. Yes, sir.

2 A. It's been a while. Probably several months ago.

3 Q. Okay. Since the end of the relationship with
4 ACC?

5 A. Probably so, yeah.

6 Q. And, you know, what's the purpose of visiting
7 them since that time if you don't use them for
8 anything?

9 A. I don't understand the question. They have, they
10 have several mines that we buy from, you know.
11 There's nothing, there's nothing wrong with
12 visiting a mine, you know. It's part of what we
13 do every day.

14 Q. All right. And how often would you say in 2021
15 and 2022, how often would you visit the B&W mine?

16 A. You know, probably, I don't know, every, you
17 know, once or twice a month probably.

18 Q. Do they keep their headquarters there or business
19 offices?

20 A. At their mine?

21 Q. At B&W.

22 A. Their office is in London, Kentucky.

23 Q. Are they by your offices?

24 A. Are they by our offices?

25 Q. Yeah.

1 A. What do you mean, by our offices? I don't
2 understand you.

3 Q. I mean locationally. Are they close by your
4 offices?

5 A. I mean London is a very small town. I don't
6 know. They're probably five or ten mile away.
7 That's approximately. I mean, I don't know
8 exactly but...

9 Q. All right. In 2021 and 2022 what types of coal
10 did you supply to the Archbold plant?

11 A. What do you mean, what types?

12 Q. Well, do you refer to it as anything?

13 A. I mean are you talking about like sizing wise
14 they want like a two by one like with no fines in
15 it, like less than 10 percent fines?

16 Q. Is that how -- yeah, I mean, that works for me if
17 that's how you would refer to --

18 A. Yeah, yeah.

19 Q. -- it yourself, yeah.

20 A. It's not a utility coal, you know --

21 Q. Okay.

22 A. It's an industrial product.

23 Q. All right. And what's a utility coal?

24 A. Utility coal is basically just crushed two by
25 zero coal, what we call two by zero.

1 Q. And what's an industrial product? What does that
2 term mean?

3 A. Industrial product generally has, has less fines
4 because they are smaller bores. They're not
5 using it to make electricity. They're using it
6 to make some other product.

7 Q. And.

8 A. So it's a more, you know, confined product. It
9 has to be.

10 Q. And did you -- sorry.

11 Did you have occasion to visit the Archbold,
12 ACC's Archbold plant?

13 A. Never been there.

14 Q. And did you know what processing equipment they
15 were working with?

16 A. I have no idea.

17 Q. Does Fire Star have a company email address or
18 just a generic one with no name?

19 A. Yeah. FireStarEnergy@Hotmail.com.

20 Q. Who checks that?

21 A. Not me. It would be Tim.

22 Q. Do you ever check it?

23 A. Never unless it's passed on to me or forwarded to
24 me.

25 Q. Do you have any email addresses that you use in,

1 associated with your Fire Star work?

2 A. No. No.

3 Q. So is it your testimony that you just don't email
4 in connection with your Fire Star work?

5 A. I don't personally very much, no.

6 Q. Okay. Occasionally?

7 A. Occasionally, sure, yeah.

8 Q. How about texting?

9 A. Occasionally.

10 Q. Let me ask: In connection with discovery in this
11 matter, you know, where the parties gather
12 information, did you check to see if you had any
13 text messages in connection with the relationship
14 with ACC?

15 A. I don't remember any.

16 Q. But my question was did you check to see?

17 A. I probably did, yes. I'm more of a phone call
18 type person. Not really a texter or a email type
19 person.

20 Q. Okay. And in 2021 and 2022 if you were going to
21 have a phone call with somebody about an issue
22 with ACC, who would you have called?

23 A. Either Neil or Mark Wagner.

24 Q. Okay. I think your brother testified that you
25 ran point, or let's say you principally handled

1 orders from ACC in 2021 and 2022.

2 Is that a fair characterization?

3 A. As far as handling, yes.

4 Q. Okay. Like inbound, right?

5 A. Yeah.

6 Q. How would those, how would that, how would those
7 orders come in?

8 A. Normally Neil would either let me know or let the
9 truckers know. There was a dedicated trucker
10 that hauled that coal for years and years and
11 years and 90 percent of the time Neil would just
12 let the trucker know what was needed.

13 Q. Okay.

14 A. That trucker passed away and Neil would either
15 let me know or sometimes he would still let a
16 trucker know, hey, I need an extra load or don't
17 bring me a load tomorrow or, you know, it was a
18 load by load. It wasn't a, you know, a lot of
19 tonnage or anything.

20 Q. And how often would somebody at Fire Star hear
21 from Neil with those orders in 2021 and 2022?

22 A. Not very often. I mean it was a, I mean it was a
23 pretty much standing, you know, for years they
24 had taken five or six loads a week and, you know,
25 that was pretty much what it was, it was a five

1 or six load a week account.

2 Sometimes they'd take four, sometimes they'd
3 take seven but, you know, five or six loads would
4 pretty much do it, so there was no need for a
5 whole lot of, a whole lot of interaction, you
6 know, when you're just dealing with those few
7 loads.

8 Q. Okay. And I understand that there is an employee
9 at Fire Star named Dwayne, D-W-A-Y-N-E. Couch,
10 C-O-U-C-H. Is that correct?

11 A. Correct, yes.

12 Q. All right. What role did Mr. Couch play in the
13 relationship between Fire Star and ACC in 2021
14 and 2022?

15 A. He had just an individual truck that he owned and
16 occasionally he would haul some of the coal up
17 there if we needed extra loads or somebody broke
18 down or, you know, something like that but, you
19 know, pretty much, pretty much about it.

20 Q. I do have some exhibits for you but I think I
21 probably don't need all of them.

22 Hold on. Let me remind myself how to do
23 this.

24 A. Yeah. Yeah.

25 Q. I'm sorry.

1 A. When you asked -- go ahead.

2 MR. HUNTER: I wasn't -- and I
3 just, in fairness, I reminded him about a
4 question you asked about what he supplied.
5 I think he was thinking of this case but he
6 forgot to tell you about Chattanooga and I
7 think his answer wasn't accurate on that.
8 I was just having him clear that up in case
9 it mattered.

10 BY MS. RATHKE:

11 Q. Mr. Jones, is there anything you'd like to clear
12 up based on the comments your counsel just made?

13 A. Yeah. Your question I think was do we supply to
14 any plants besides Archbold. I was just
15 thinking, have I been there. No, I haven't been
16 there but we had supplied a plant in the past in
17 Chattanooga.

18 Q. And when did that take place?

19 A. I'd have to go back and look. It was, you know,
20 two or three years ago, three or four years ago.
21 We did it for a year or so or a couple years or
22 something like that.

23 MS. RATHKE: Okay. Do you guys
24 have Exhibit Share up and running or do you
25 want me to share my screen? Either one is

1 fine by me.

2 MR. HUNTER: Either one is, I
3 guess is fine by us. I've never done
4 Exhibit Share before, but I think I can do
5 it.

6 MS. RATHKE: All right. I can
7 just share the screen. Hold up.

8 MR. HUNTER: Okay.

9 MS. RATHKE: So I've got --

10 MR. HUNTER: Wait. Wait. So
11 since we have Exhibit Share, this is really
12 teeny. Can -- Christ.

13 MS. RATHKE: So if you're in
14 Exhibit Share, you can control the size of
15 the exhibit yourself with the magnifying
16 glass plus icon but I think I'm probably
17 sharing my screen right now. Can you see?

18 MR. HUNTER: Yeah. But it's
19 just --

20 MS. RATHKE: Would you like me to
21 make the screen bigger?

22 MR. HUNTER: Yeah, but it's not
23 that. It's that the exhibit is like 1/50th
24 of the size of my screen. It's just in a
25 little teeny space on the right.

1 See, all I have is the Veritext
2 web page and the area where the document is
3 now showing. I don't see any of you and I
4 don't know if there's another screen I have
5 to get to.

6 MS. RATHKE: So maybe just enlarge
7 the -- well, here, let's go off the record.
8 We have tech support here. Let's have tech
9 support help you out.

10 THE VIDEOGRAPHER: Okay. This is
11 the videographer. We're going off the
12 record at 11:36.

13 - - - -
14 (Thereupon, a discussion was had off the
15 record.)

16 - - - -
17 THE VIDEOGRAPHER: This is the
18 videographer. We are back on the record.
19 It is 11:37. We are back on the record.
20 It's 11:37.

21 - - - -
22 (Thereupon, Defendant's Exhibit 1, ACC
23 00001008, D. Jones text messages, was marked
24 for purposes of identification.)

25 - - - -

1 Q. Great. All right. Mr. Jones, can you see on the
2 screen a document that bears exhibit sticker
3 number 1?

4 A. Yes.

5 Q. All right. And can you see it well or do you
6 need me to make it bigger?

7 A. A little bigger would help.

8 Q. How's that?

9 A. That's better. Thank you.

10 Q. All right. So just to orient you to space and
11 time: Some of ACC's employees had texts
12 involving you, so I'm going to ask about them.

13 So do you recognize what's on the screen
14 right now to be a text message between you and
15 Neil Miller?

16 A. It doesn't say who it's between. It just has my
17 name at the top. I have no idea who it's, I have
18 no idea who it's between.

19 Q. All right. Well, we produced it. So I mean if I
20 represent to you that it was somebody on the ACC
21 side, would you agree --

22 A. Okay.

23 Q. -- it was probably Neil?

24 A. Probably I'd say, yeah.

25 Q. All right. So I just want to ask about the, what

1 the meaning of some of these statements is.

2 So within your text dated July 27, 2021, you
3 say: "Sorry for the delay. We should have fresh
4 coal in tomorrow. I will sample it before I send
5 it. It will be the oversize."

6 What does "it will be the oversize" mean?

7 A. That means, the oversize is basically a two by
8 one product that they wanted, a specific size.

9 Q. And when you say "I will sample it before I send
10 it," what does that mean?

11 A. Well, we always do that. That doesn't have any
12 meaning to it at all. It just...

13 Q. What does sample consist of? Like...

14 A. Basically a sample is you have an independent lab
15 come in and get a sample of the coal and, you
16 know, it lets you -- it tells you what the
17 specifications are. That way we know what the
18 specifications are before we send it.

19 Q. And then you say: "The stoker that you have been
20 getting on our end shows in the 70 to 80 range."

21 What does that mean?

22 A. I'm assuming that that means sulfur. The 70 to
23 80 range would probably be pertaining to sulfur.

24 Q. And then you say: "I won't send any more of it."
25 Is that because that range is high for the ACC

1 purpose?

2 A. No, they don't, they don't like the smaller size
3 coal. They like the bigger screen size coal.

4 So, you know, that was all we had at the time
5 and that's what they, that's what they had taken
6 and the stoker is a different product, it's a
7 smaller product than what they normally, what
8 they normally, what they normally get but, but
9 they were, they were taking it.

10 Q. Okay. I think you'll be able to continue seeing
11 my screen if I do this, which will just be easier
12 for continuity's purpose.

13 - - - -

14 (Thereupon, Defendant's Exhibit 2, ACC
15 00001014, 9/1/21 D. Jones text messages, was
16 marked for purposes of identification.)

17 - - - -

18 Q. All right. Do you some a document on your screen
19 that has exhibit sticker 2?

20 A. Yes.

21 Q. That's a little excessive. How is that? Are you
22 able to read it well?

23 A. Yeah, that's fine.

24 Q. Were there instances in 2021 and 2022 when
25 Mr. Miller would text both you and Mr. Couch?

1 A. Maybe. I mean I don't -- could have, sure.

2 Q. Okay. Let's see.

3 Do you see the text from Mr. Miller dated
4 September 1, 2021?

5 A. Yes.

6 Q. He says -- and I'm just going to ask the meaning
7 of some of this.

8 "You're going to have to send me coal. If it
9 has to be wet stoker, so be it."

10 What does that mean, what's wet stoker?

11 A. It's just, it's just where, probably where it's
12 been rained on, just, you know, it's high in
13 moisture.

14 Q. Okay.

15 A. So, yeah, probably during rainy season or rainy
16 week and probably I've indicated to him that that
17 was all we had, all we had was stoker, smaller
18 size but it was really wet, so...

19 Q. Does stoker means smaller size?

20 A. Stoker means smaller size, correct.

21 Q. He then says: I can't let my inventory be
22 depleted to nothing. Please let me know the
23 approximate tonnage you would ship me this
24 week -- you will ship me this week.

25 The question to you is when ACC's Archbold

1 inventory of coal was getting low, would you
2 typically be hearing from Mr. Miller about
3 needing more coal?

4 A. Yeah. Sure. Yeah.

5 Q. And then he goes: "Also how are we doing in the
6 loader situation?"

7 What does that refer to?

8 A. We probably -- not exactly for sure but we
9 probably had a loader break down at the facility
10 that was being worked on or waiting on parts or
11 something I would say. That's -- a loader is a
12 piece of equipment that loads coal into the truck
13 is what that is.

14 - - - -

15 (Thereupon, Defendant's Exhibit 3, ACC
16 00001007, September 2021 D. Jones text
17 messages, was marked for purposes of
18 identification.)

19 - - - -

20 Q. All right. Do you see a document on your screen
21 that bears the exhibit sticker number 3?

22 A. Yeah. I need it a little bigger. There you go.
23 Thank you.

24 Q. Yep. Got it.

25 All right. Do you recall an instance before

1 September 25, 2021 when Mr. Miller texted you:
2 "On the days I run, I process over 100 tons we
3 need to find another truck to help. I am kind in
4 dire straits here. If anyone asks for processed
5 coal I will be forced to say no, and that" --
6 well, let's stop there.

7 Do you recall an instance in August 2021
8 where Mr. Miller was telling you he had virtually
9 no inventory of coal?

10 A. I mean, I don't know the exact dates but it
11 sounds like he was getting low on coal --

12 Q. Yeah.

13 A. -- In reading this text, so...

14 Q. And is that the kind of thing that he would
15 communicate with you about?

16 A. Yeah.

17 Q. Then he goes: "And that is my responsibility to
18 be the contingency supplier."

19 Did you have an understanding as to what he
20 meant by that?

21 A. No.

22 Q. Did you ask?

23 A. No.

24 Q. Did you understand in 2021 and 2022 that ACC's
25 Archbold plant ground for its Albion plant?

1 A. No.

2 Q. And looking down further in Exhibit 3, there's
3 one from, a text from you dated September 25,
4 2021 and you go: "All I will have the first part
5 of the week is stoker."

6 Okay, I think I know what that means now.

7 And then you say: "I'm supposed to have a
8 big pit toward the end of the week."

9 What does that mean?

10 A. Just a fresh pit or a bigger pit of coal. A pit
11 of coal is just a, it's what it's called, a pit
12 of coal.

13 Q. Okay. Then further down in your text you say:
14 "We are running short on all of our customers."

15 What does that mean?

16 A. You know, just probably running short on coal for
17 everybody I assume. I mean I, you know, these
18 are specific, specific times. I mean, I'm not,
19 I'm not, I don't know.

20 Q. Do you, for your other customers, are they
21 supplied, are they all supplied by other mines
22 owned by Lipari?

23 A. No.

24 Q. How many customers does Lipari supply to?

25 A. I don't know. I mean I have no idea.

1 Q. Okay. Like a few? Fair to say?

2 A. I would think probably.

3 - - - -

4 (Thereupon, Defendant's Exhibit 4, ACC
5 00001005, 11/17/21 D. Jones text messages,
6 was marked for purposes of identification.)

7 - - - -

8 Q. All right. Do you see an exhibit, a document on
9 your screen that bears exhibit sticker 4?

10 A. Yes.

11 Q. All right. And do you recognize Exhibit 4 to be
12 a text from Mr. Miller to you and the ones that
13 we can see dated November 17, 2021?

14 A. It doesn't say who it's from, but I assume, if
15 you say it's, if you say it's Neil, I guess
16 that's who it is. It doesn't say on here who it
17 is.

18 Q. Would Mr. Miller occasionally send you pictures
19 of his shed in one state of --

20 A. Sure.

21 Q. -- being filled or another?

22 A. Yeah.

23 Q. Does that look like his shed?

24 A. I've never been to the facility. I don't know if
25 it's his shed or not. But, you know, he has sent

1 me a picture like that before but...

2 Q. Okay. So, I mean, that looks like other pictures
3 that Mr. Miller has sent you of his shed that you
4 can recall?

5 A. I don't recall. It's a shed.

6 Q. All right.

7 A. Yeah.

8 Q. So he writes: "Good morning, sir. I appreciate
9 the coal that you have been sending. It is very
10 nice and clean. This is my shed and we are
11 approaching winter quickly. Is there any way
12 that we can bump the volume up? That way the
13 boys aren't forced to come up here in order for
14 me to survive on bad weather days."

15 Do you recall as winter was approaching in
16 2021 Mr. Miller communicating with you on one or
17 more occasions that he needed more coal to
18 prepare for the winter?

19 A. Everyone usually stockpiles extra coal in the
20 wintertime just because of the weather.

21 Q. And that, I mean essentially would be a normal
22 thing for him to communicate?

23 A. Yeah. Yeah. Like any customer would do that.

24 Q. All right. Do you recall his -- well, let me
25 just...

1 All right. Do you see a document on your
2 screen that bears Bates label 5 -- or sorry
3 exhibit sticker 5?

4 A. Yes.

5 Q. And do you see a text to you dated November 24,
6 2021 that says: "My building is empty now."

7 A. Uh-huh.

8 Q. Do you recall -- sorry, is that a yes just for
9 the court reporter's purposes?

10 A. Yes. That's, I see the picture.

11 Q. Okay. Do you recall at the end of November 2021
12 Mr. Miller escalating his pleas to you that he
13 needed more coal?

14 A. Escalating his pleas? No, I wouldn't put it that
15 way.

16 - - - -

17 (Thereupon, Defendant's Exhibit 5, ACC
18 00001004, 11/24/21 D. Jones text messages,
19 was marked for purposes of identification.)

20 - - - -

21 Q. All right. Do you recall him communicating to
22 you on or about the Thanksgiving weekend to the
23 effect as shown in Exhibit 5 that his shed no
24 longer had any coal in it?

25 A. I mean I can see the picture, yeah. I can see

1 the picture, yes.

2 Q. Do you recall communicating with him over the
3 Thanksgiving weekend?

4 A. I can't tell you about that particular day but,
5 yeah, I mean we, we did communicate all the time.

6 Q. Okay. And you go: "We've had production issues
7 this week plus the Blevins truck is broke down."

8 So I guess there are kind of two things
9 there.

10 What's the Blevins truck?

11 A. Just the name of the truck probably that was
12 hauling some of the coal up there.

13 Q. Okay. And what does --

14 A. He was --

15 Q. Sorry. Go ahead.

16 A. Yeah, he was very particular about who he wanted
17 to haul coal up there and it would be, so...

18 Q. So, yeah, what do you mean by he was particular?
19 Are you talking about Mr. Miller?

20 A. Yeah. Yeah. He only wanted certain trucks to
21 come up there, so...

22 Q. And what's the basis of your understanding in
23 that regard?

24 A. Because that's what he told us, you know, that's
25 the reason, that's the reason the one supplier

1 hauled it all those years, the guy that passed
2 away.

3 Q. And I'm sorry, what did you refer to him as?

4 A. Refer to who?

5 Q. The gentleman who passed away? Did you say --

6 A. Donald Todd is his name.

7 Q. Can you spell the last name?

8 A. T-O-D-D, Todd.

9 Q. And not because I'm going to investigate or
10 anything like that, but just because the court
11 reporter needs the spellings of the names and
12 stuff.

13 All right. And in December 2021, do you
14 recall getting other pictures from Mr. Miller
15 showing his empty coal shed as depicted in
16 Exhibit 5?

17 A. Yeah. If these are -- if it's the same pictures.
18 I don't know if it is or not, I mean, but yeah.

19 Q. All right. Let me ask if you've seen a
20 particular email. Hold on.

21 - - - -

22 (Thereupon, Defendant's Exhibit 6, FS 00107,
23 12/16/21 Miller letter to Jones, et al., was
24 marked for purposes of identification.)

25 - - - -

1 Q. All right. Do you see a document on your screen
2 labeled Exhibit 6?

3 A. Yes.

4 Q. Okay. And Exhibit 6 is an email from Mr. Miller
5 to the FireStarEnergy@Hotmail.com email address
6 that you mentioned earlier.

7 Do you see that?

8 A. Yes.

9 Q. And he says: "Good morning, Tim and Dwayne," and
10 I won't belabor the record and the court reporter
11 by reading it, but if you could just review
12 Exhibit 6 and let me know if this is a document
13 that you had seen before, let me know.

14 A. I have probably seen it. But the answer was no,
15 we were not supplying coal to any of the other
16 plants, just to the Archbold plant.

17 Q. Okay. I mean I guess I have a question as --
18 well, strike that. So let me just unpack that a
19 little bit.

20 Are you testifying that you do in fact recall
21 seeing Exhibit 6 or you're not sure?

22 A. I mean --

23 Q. This is your personal knowledge.

24 A. Yeah. I mean I could have seen it, could not
25 have seen it, I mean, you know. But I mean I

1 know we were asked the questions. The answer was
2 no, we're not supplying other plants.

3 Q. Okay. So fair to say as you sit here today, you
4 don't recall whether you saw Exhibit 6? Is
5 that --

6 A. If I didn't see it, you know, Tim could have told
7 me about it, so it, you know, it, so...

8 Q. Okay. So neither party's production evidences or
9 shows any response to Exhibit 6, so let me first
10 start by asking you: Do you recall seeing a
11 written response to Exhibit 6?

12 A. From, from Fire Star?

13 Q. That's right.

14 A. No. No.

15 - - - -

16 (Thereupon, Defendant's Exhibit 7, ACC
17 00001002, D. Jones text messages, was marked
18 for purposes of identification.)

19 - - - -

20 Q. Okay. Do you see a document on your screen that
21 bears exhibit label number 7?

22 A. Yes.

23 Q. All right. So starting at the top of Exhibit 7,
24 do you recall Mr. Miller asking you if Fire Star
25 had capacity to service ACC's Belvidere,

1 B-E-L-V-I-D-E-R-E, Illinois, facility?

2 A. That's what the text says.

3 Q. But do you recall them asking about that?

4 A. Not for sure.

5 Q. Okay. Was there ever an instance that you can
6 recall where Fire Star shipped coal directly to
7 ACC's plant in Belvidere?

8 A. No. No. We never shipped anything.

9 Q. And later that day there's a text from you that
10 says -- oh.

11 "Let me check. We have an affiliate mine out
12 that way that we might be able to pull from with
13 respect to Belvidere."

14 What does that refer to?

15 A. That was just probably something that we could
16 check on, see if we could help them find the coal
17 from a different source.

18 Q. Okay. And do you recall if you were able to find
19 coal from a different --

20 A. No.

21 Q. -- source?

22 A. No. We were not, no.

23 Q. Sorry. No, you don't recall or no, you were not
24 able to find coal?

25 A. No, we were not able to find any, anything, no.

1 Q. And what did you do to investigate?

2 A. What do you mean, "investigate"?

3 Q. Well, what did you do to look to see if you could
4 find other coal?

5 A. Well, I mean, you know, we made some phone calls
6 and checked around to see if there was any supply
7 up there. It's a, you know, it's a logistically
8 hard place to get to from what I remember.

9 Q. Okay. And how so?

10 A. Just because it's a long way away.

11 Q. And is truck delivery the only option or is
12 Belvidere one that can do rail or --

13 A. I have no idea. I have no idea at all.

14 Q. And then you say --

15 A. You can see I asked the question, yeah.

16 Q. And then you say: "By the way, I'm building
17 inventory for you next week. Hope to get you six
18 to eight loads next week."

19 What does that refer to?

20 A. Basically, you know, we're making inventory for
21 your coal needs for next week. Hope to get you
22 six to eight loads, so...

23 Q. Okay. And, you know, here in this exhibit we're
24 in the beginning of 2022, so meaning we've gone
25 all the way through 2021 which is one year out of

1 a two-year contract that, you know, existed
2 between the parties.

3 So let me ask this: In 2021 had ACC's orders
4 for coal from Fire Star and the amount of their
5 orders been unusual or seemed unusual to you?

6 A. In 2021?

7 Q. That's right.

8 A. No. They were always 10 or 12,000 ton a year.
9 That's what they had been for years.

10 Q. Okay. So fair to say 2021 orders were consistent
11 with previous years?

12 A. Pretty much so.

13 Q. Okay. How about 2022 for the part of the year
14 that ACC and Fire Star did business?

15 A. I'd have to go back and look at the numbers. I
16 don't have them in front of me but they were
17 pretty, pretty basically the same. You know, the
18 five to six loads a week.

19 Q. Okay. Is the email address DNRJones@AOL.com, is
20 that you?

21 A. Uh-huh, correct.

22 - - - -

23 (Thereupon, Defendant's Exhibit 8, ACC
24 00000588-590 Dwayne text messages, was marked
25 for purposes of identification.)

1 - - - -

2 Q. Okay. Do you see exhibit on your screen marked
3 with exhibit sticker number 8?

4 A. Yes.

5 Q. I'm making it bigger.

6 A. Yeah, that's better.

7 Q. All right. Do you recall an instance where in
8 March 2022 when Fire Star imposed a, what it
9 called a fuel surcharge on ACC coal deliveries?

10 A. Yes.

11 Q. What precipitated that?

12 A. Fuel, fuel process had doubled, tripled in some
13 occasions across the United States and we would
14 no longer be able to get it hauled at the same
15 price, so fuel surcharges were a common practice
16 during those several months not only to us but
17 our vendors and their suppliers and all,
18 according to them also, everybody that, that they
19 did business with was charging fuel surcharge.

20 Q. Do you recall that ACC agreed to pay your fuel
21 surcharge?

22 A. They did.

23 Q. Do you recall that as a result of that ACC had to
24 add additional approvals in its system to get
25 Fire Star paid?

1 A. I have no idea about that.

2 Q. At any rate, looking at what's been marked as
3 Exhibit 8, on June 17 or June 7, 2022 do you
4 recall receiving a text from Mr. Miller saying:
5 "Dwayne, I checked and we're caught up on
6 payments from yesterday. I'll send you a note,
7 but are you able to ship this week?"

8 Do you see that?

9 A. I do see that. I don't know who that's with,
10 but...

11 Q. And then you say, you say: "We won't have any
12 this week. We'll try to get you some next week."

13 Do you recall this communication with ACC?

14 A. I mean not in particular, no. I mean you're, you
15 know, you're just pulling texts out of, you know,
16 no.

17 Q. Yeah. Well, that's kind of how it works. But
18 then let me ask more broadly.

19 You know, after ACC got caught up on its
20 payments with the fuel surcharge to Fire Star,
21 was it your intention to continue to supply Fire
22 Star with coal?

23 A. As long as they were caught up on payments, which
24 they were --

25 Q. Okay. And so --

1 A. They were -- they were not, they were not caught
2 up on payments. They never got caught up on
3 payments.

4 Q. What do you mean by that?

5 A. They were continually behind. That's what this
6 whole case is about. They were continually
7 behind on payments forever.

8 Q. What do you mean by "forever"?

9 A. Well, I mean look at the text you just put up
10 there, even whoever responded said: "We are
11 finally caught up on payments."

12 Q. Right. I take, so I take "we are finally caught
13 up on payments" to refer to --

14 A. Yeah.

15 Q. -- two invoices that had to be processed
16 differently in ACC's system because of the fuel
17 surcharge, but are you saying that ACC was late
18 on more than two invoices?

19 A. They were always late.

20 Q. And by what standard?

21 A. By the standard being they were always late.
22 They were supposed to pay net 30 and they never
23 paid on net 30.

24 Q. And --

25 A. They never, they never paid on time. We had to

1 continually ask for money. That's how this,
2 that's the reason this case is where it's at
3 right now.

4 Q. And what's --

5 A. We finally had to ask for a, some type of surety
6 that we were going to get paid, either a letter
7 of credit or some type of security, and we were
8 told that that was going to be worked out and,
9 sure, that should be no problem and then all of a
10 sudden it, they didn't do it. It was, it was a
11 problem. I guess they weren't going to do it or
12 they decided not to do it.

13 Q. Before March 2022, had ACC ever been late on a
14 payment? Later than net 30?

15 A. Absolutely.

16 Q. Okay. And net 30 means net -- payment 30 days
17 after receiving an invoice. Fair?

18 A. That's exactly, the exact -- payment from the
19 invoice date, not after receiving an invoice,
20 from the invoice date.

21 Q. And is that your understanding -- what's your
22 understanding that that's what net -- that's a
23 pretty specialized meaning of the term net 30.
24 What's your understanding that that's the meaning
25 of it?

1 A. Because a hundred percent of all of our other
2 customers are exactly like that.

3 Q. Okay. Do you recall the contract between the
4 parties having a provision defining what net 30
5 means?

6 A. No. I mean I'd have to -- no. I mean it's, it's
7 pretty obvious what net 30 means.

8 If I say I'm going to pay you in 30 days,
9 then on the 30th day or before you should get
10 your money, not 45 days, not 60 days, not one
11 excuse after the other.

12 Q. Have you ever seen the contract between ACC and
13 Fire Star governing 2021 and 2022 deliveries?

14 A. I don't understand where you're -- what do you
15 mean, have I ever seen it?

16 Q. Have you seen it? Have you read it?

17 A. Sure. I've read it.

18 Q. Okay.

19 A. You can't just pay someone whenever you want to.
20 The world doesn't work like that.

21 Q. Well, that's true but do you agree that the
22 world, the way the world does work is if you have
23 a contract, parties should follow the contract?
24 Do you agree with that?

25 A. Yeah, but it can't be one sided.

1 Q. Well, Fire Star is a, you know, professional,
2 experienced business, correct?

3 A. So is ACC.

4 Q. Yep. So both parties are. Fair?

5 A. So...

6 Q. So if both parties enter into a contract, that's
7 what should govern, fair?

8 A. What terms did they expect to pay on?

9 - - - -

10 (Thereupon, Defendant's Exhibit 9, Coal
11 Supply Agreement, was marked for purposes of
12 identification.)

13 - - - -

14 Q. Do you recognize what's been marked as Exhibit 9
15 on your -- do you see a document marked Exhibit 9
16 on your screen?

17 A. I do.

18 Q. All right. Do you recognize Exhibit 9 to be the
19 coal supply agreement between Fire Star and ACC
20 governing the term January 1, 2021 through
21 December 31, 2022?

22 A. Uh-huh.

23 Q. Is that a yes?

24 A. Yes.

25 Q. Have you seen Exhibit 9 before today?

1 A. Yes.

2 Q. Fair to say Exhibit 9 is a legally binding
3 contract between the parties in this case,
4 correct?

5 A. Yes.

6 Q. Do you recall Paragraph 8 of the contract between
7 the parties indicating payment terms?

8 A. Do I recall it? I can read it now.

9 Q. Sure.

10 A. Yeah.

11 Q. All right. Do you see that payment terms in
12 Exhibit 9 state: "30 days from receipt of
13 invoice issued after dispatch of each Delivery."

14 Do you see that?

15 A. Uh-huh.

16 Q. Is that a yes?

17 A. Yes.

18 Q. And fair to say it's Fire Star that determines
19 when to issue its invoices, correct?

20 A. No. No. It's, we get, we have to get the
21 weights from them to issue an invoice. They were
22 continually late on giving us weights on the
23 truck to invoice, to give them invoices.

24 Q. Okay.

25 A. Nothing but a tactic that they used to slow

1 payment down.

2 Q. And how long did they use that tactic?

3 A. Forever they used the tactic.

4 Q. Before the, before this contract started?

5 A. Yes.

6 Q. All right. Is there any instance that you're
7 aware of where Fire Star complained about this
8 "tactic," as you call it, in writing?

9 A. I mean, I'd have to go back and look. I don't
10 know about writing but we complained about it all
11 the time.

12 Q. To whom?

13 A. To Mike Wagner, Aric Wentz, Neil, Tom the
14 previous buyer. You know, I mean it was just, it
15 was just a never-ending thing and they would,
16 they will admit that. That's not, that's not,
17 that's not to be discussed or I mean not to --
18 there's no conflict in that answer there. They
19 were late on payments period.

20 Q. Well, I'm not sure, I just got to be honest with
21 you, I'm not really sure they see it that way.

22 But I just, like I just don't want your
23 comment to go unaddressed so that you think that
24 we are in agreement. We're not. Neither here
25 nor there for the purpose of your deposition, but

1 I didn't want you to be misled.

2 All right. Hold on. Let me go back to a
3 previous exhibit.

4 All right. We got Exhibit 8 back up. Do you
5 see that?

6 A. Yes. I see that, yeah.

7 Q. Okay. Fair to say that Fire Star did not supply
8 ACC Coal with coal at any point after June 8th,
9 2022?

10 A. I'd have to go back and look at the dates.

11 Q. Okay.

12 A. I'm not sure of the exact date. I don't have any
13 of that in front of me, but --

14 Q. All right. I think we'll get there.

15 A. Yeah. There, there was a point, as I said, that
16 we did ask for some type of security going
17 forward, either a letter of credit, a prepay of a
18 minimal of 500 tons. Some type of security.
19 Yeah, that should be no problem and, you know,
20 it, it never did materialize, you know, so...

21 Q. And you were on, you were on -- involved in those
22 communications. Fair?

23 A. Yes.

24 Q. Okay. And we'll get to those.

25 When did Fire Star make the determination

1 that it was not going to supply coal any longer
2 to Fire Star -- sorry. I got that wrong.

3 When did Fire Star make the determination
4 that it was not going to supply coal any longer
5 to ACC?

6 A. After we were told that they would not give us
7 any security going forward on payments, any type
8 of security, anything. We were asking for just
9 anything, which is a fair question. The records
10 will show that they were late, continuously late
11 so it was our right to ask for some type of
12 security.

13 - - - -

14 (Thereupon, Defendant's Exhibit 10, FS
15 00054-055, 7/19/22 Wagner letter to Tim and
16 Dwayne Jones, was marked for purposes of
17 identification.)

18 - - - -

19 Q. All right. I'm going to show you what will be
20 marked as Exhibit 10 to your deposition and let
21 me ask you if you can see on your screen a
22 document that bears exhibit sticker number 10?

23 A. Yes.

24 Q. Do you recognize Exhibit 10 to be emails between
25 you, your brother, ACC's Mr. Wagner, Mr. Miller

1 and Mr. Wentz in June and July of 2022? Take as
2 much time with that as you need.

3 A. Yes.

4 Q. Okay. I'm going to start, you know, as emails
5 do, with the, you know, the last one in the chain
6 is always the earliest one.

7 Fair enough?

8 A. Yeah.

9 Q. Okay. So do you see on the bottom of the first
10 page of Exhibit 10 an email from Wagner to you
11 and your brother copying others entitled: "Fire
12 Star 100 percent Archbold requirements over the
13 next 4 weeks."

14 Do you see that?

15 A. Uh-huh.

16 Q. Yes?

17 A. Yes.

18 Q. And he says: "Per our contract, the 100 percent
19 requirements over the next four weeks in Archbold
20 will be 2391 tons," et cetera, et cetera.

21 Does this refresh your recollection that, you
22 know, the June 2022 time frame is when Fire Star
23 stopped supplying coal to ACC?

24 A. Yeah. The et cetera, et cetera also says: We've
25 also resolved our outstanding invoices issue.

1 Q. Fair enough.

2 A. I mean clearly, clearly this is the, the meat of
3 the case is they would not pay, you know. You
4 know, we, once we got to this part, you know, we
5 got the legal counsel and they handled it from
6 there, so...

7 Q. So but fair to say that June 2022 is when Fire
8 Star stopped supplying?

9 A. I would have to look. I don't have those dates
10 in front of me, but...

11 Q. Directionally correct?

12 A. We could get you those dates when we actually
13 stopped shipping if you need those dates.

14 Q. It's not that I don't know. It's that I'm trying
15 to substantiate them through you but, you know,
16 good enough.

17 All right. Going to the first email in
18 Exhibit 10, now we're on the July 19, 2022 email
19 from Wagner to the same, the same recipient list.

20 A. Uh-huh.

21 Q. Do you recall receiving this top email in Exhibit
22 10?

23 A. It looks familiar.

24 Q. And Wagner says: "We unfortunately received no
25 coal from you in June or month to date."

1 First of all, is that a correct statement?

2 A. I have no idea. I'd have to go back and look at
3 the dates.

4 Q. All right. And then he says: "We've also tried
5 to communicate with you but have received no
6 communication regarding our deliveries via email,
7 phone or text."

8 Is that a true statement?

9 A. I have no idea about that.

10 Q. Okay. Do you know whether anybody responded to
11 Mr. Wagner's June 10 email?

12 A. I'm sure we did by phone or the attorneys did.
13 Like I say, we were shocked that, you know, that
14 it says: Expect our tonnage requirements will be
15 300 tons per week through the end of the year and
16 all of a sudden they ask for 2300 tons of coal
17 that they've never asked for. So and that
18 concerns me that all of a sudden, okay, I have
19 somebody that owes me money, now they want more
20 coal and then in the last line there he says:
21 Our tonnage will only be 300 tons through the end
22 of the year.

23 You know, that verifies and proves how much
24 tons that they actually took from us on a weekly
25 basis was again the five to six loads per week.

1 Q. Is it your belief, in this lawsuit is it your
2 belief that as of June 10, 2022, the second email
3 in Exhibit 10, that ACC owed you money?

4 A. Again, I would have to look at the dates. I
5 can't, without having the dates in front of me,
6 that would be a question for Tim, not for me.

7 Q. In that email Mr. Wagner says: "We've also
8 resolved your outstanding invoice issues as of
9 6/6/22."

10 Do you have any reason to believe that that
11 is not accurate?

12 A. I'm assuming. I mean I don't know.

13 Q. Okay.

14 A. The, you know, the, that was the assurity
15 {sic} -- he had told us, you know, should be no
16 problem to get you some type of security. I
17 understand we've been late. We're late. Da
18 tadah tadah. That shouldn't be a problem. Well,
19 that never materialized, you know.

20 Q. All right. Let me get to those communications
21 about the surety.

22 MR. HUNTER: Let's take a --
23 we've been going for a while. Can we just
24 take a five-minute break?

25 MS. RATHKE: Yeah. We can. Let's

1 go off.

2 THE VIDEOGRAPHER: This is the
3 videographer. This will mark the end of
4 Media Unit Number 1. We are going off the
5 record at 12:23.

6 - - - -

7 (Thereupon, a recess was had.)

8 - - - -

9 THE VIDEOGRAPHER: This is the
10 videographer. We are back on the record at
11 12:29 and this marks the beginning of Media
12 Unit Number 2. You may proceed. Thank
13 you.

14 Q. Okey-dokey. All right. So when we took a break,
15 we were looking at Exhibit 10. Do you recall
16 that?

17 A. Yes.

18 Q. All right. And the top email in Exhibit 10 is
19 from Mr. Wagner dated July 19, 2022. Fair
20 enough?

21 A. Yes.

22 - - - -

23 (Thereupon, Defendant's Exhibit 11, FS
24 0002-0020, 7/20/22 Rathke letter to Tim
25 Jones, was marked for purposes of

1 identification.)

2 - - - -

3 Q. All right. So let me ask about what I've marked
4 as Exhibit 11.

5 Do you see on your screen a document that
6 bears exhibit sticker Number 11 to your
7 deposition?

8 A. Yes.

9 Q. And do you see that Exhibit 11 is a letter the
10 next day from Exhibit 10. In other words, July
11 20, 2022, from me to your company sending a draft
12 complaint?

13 A. Yes. I see that, yes.

14 Q. Okay. Do you recall seeing Exhibit 11 on or
15 about July 20, 2022.

16 A. I do not.

17 - - - -

18 (Thereupon, Defendant's Exhibit 12, ACC
19 00000142-143, 7/27-7/28/22 Hauser/Rathke
20 email string, was marked for purposes of
21 identification.)

22 - - - -

23 Q. All right. Let's go to Exhibit 12.

24 Can you see Exhibit 12 on the screen?

25 A. Yes.

1 Q. And, let's see.

2 Do you recognize Exhibit 12 as being an email
3 string from, with the top one being from Pat
4 Hauser to me copying you dated July 28, 2022?

5 A. Yes.

6 Q. Do you recall seeing Exhibit 12 on or about July
7 28, 2022?

8 A. I'm not sure what date I saw it but I do
9 recognize the document.

10 Q. All right. Great.

11 All right. So doing our rule that we do with
12 emails with the most recent ones being at the
13 end, let me start with the one at the bottom
14 from, dated July 27, 2022.

15 Do you see that?

16 A. Yes.

17 Q. And that's from you, correct?

18 A. Yeah. It's from me to, looks like Debbie Day.

19 Q. And who is Debbie Day?

20 A. I guess she's a paralegal that works for
21 Mr. Hauser.

22 Q. All right. Very good. And essentially this
23 first email in Exhibit 22, is this an email from
24 you to Ms. Day outlining Fire Star's request for
25 payment assurances as of that date?

1 A. As of that date, yeah.

2 Q. And fair to say you were copied when that was
3 forwarded to me, correct?

4 A. Yes.

5 - - - -

6 (Thereupon, Defendant's Exhibit 13, ACC
7 00000149-151, 7/27-7/29/22, Rathke/Hauser, et
8 al. email string, was marked for purposes of
9 identification.)

10 - - - -

11 Q. All right. Do you see on your screen a document
12 that's been labeled Exhibit 13 to your
13 deposition?

14 A. Yes.

15 Q. And do you recognize Exhibit 13 as a series of
16 emails on which you're also copied involving me,
17 Mr. Hauser --

18 A. Yes, I see it in front of me, yes.

19 Q. All right, yeah. And as to the first or the
20 lower email on Page 1 of Exhibit 13, Ms. Day as
21 well?

22 A. Yes.

23 Q. Just out of curiosity, were you handling the
24 request for adequate assurances rather than Tim
25 or --

1 MR. HUNTER: Are you talking
2 about the one, the oral one before or this
3 one here?

4 Q. Well, is FireStarEnergy@Hotmail.com, is that
5 basically Tim's email, your brother's email
6 address?

7 A. Correct.

8 Q. Okay. Got it.

9 All right. And going to Page 2 of Exhibit
10 13, all right. Do you recognize -- or Page 3.

11 Do you recognize Page 3 as being the email
12 that we looked at in the previous exhibit? In
13 other --

14 A. It looks the same. Without, I mean without
15 reading it word for word, it looks the same
16 basically.

17 Q. Yeah. Your terms that you typed out? Fair to
18 say?

19 A. That looks like our terms, yeah.

20 Q. Yeah. Okay.

21 A. As of that date.

22 Q. Yeah. And then you see where Mr. Hauser passed
23 that on to me as we saw before?

24 A. Yeah.

25 Q. All right. Do you recall Mr. Hauser copying you

1 on a modification of his demand on July 29, 2022?

2 A. Yeah. I see it in front of me, yes.

3 Q. And is this a fair characterization of Fire
4 Star's demand as of that date?

5 A. As of that date, yes.

6 Q. All right. So looking at Exhibit 13, after I
7 rejected the offer sent, fair to say that Fire
8 Star was determined no longer to send ACC any
9 more coal, correct?

10 A. As of, as of that date.

11 Q. Right.

12 A. Yeah, because it was, it was in legal. You know,
13 we turned it over to legal then, so...

14 Q. Okay. I guess then fair to say that whenever it
15 is that you like first turned it over to legal,
16 that by that point Fire Star was no longer
17 willing to supply coal?

18 A. We were willing to supply coal as long as we
19 could get paid and we made every attempt and
20 every offer and it kept getting rejected rejected
21 rejected, and we just asked for any type of
22 security, give us anything, for a long time --

23 Q. Are there --

24 A. -- give us something. I mean, you know.

25 Q. Are there any other written demands for payment

1 security other than the ones that I've shown you
2 that you're aware of?

3 A. I would have to look. I mean, you know, we, most
4 of the conversation was by phone with Michael
5 Wagner when it come to this point.

6 Q. All right. Fair to say that in context and in
7 connection with discovery in this case you have
8 in fact diligently searched all of Fire Star's
9 business records for documentation relevant to
10 this case, correct?

11 A. That's not correct. That's a little, yeah,
12 that's a little offline there.

13 Q. Okay. Is it then fair to say that you have not
14 diligently searched Fire Star's documentation for
15 relevant evidence in this case?

16 A. I don't understand. I don't understand your
17 question.

18 MR. HUNTER: I think he
19 misunderstood your question, Sarah.

20 Say it again.

21 Q. Sure. Is it fair to say that Fire Star in
22 connection with discovery has diligently searched
23 all of its business records and turned over
24 everything relevant to this case?

25 A. Yes.

1 Q. Okay. So fair to say that if there were any
2 other written communications, they would be in
3 here? We would have received them?

4 A. Yes.

5 Q. All right. Let's talk about the road closures in
6 connection with the Lipari mine that supplied
7 ACC's coal.

8 Was there a period of time where you learned
9 that the Lipari mine was not, that supplied ACC's
10 coal was no longer able to deliver coal because
11 of a weather emergency or road closures?

12 A. Are you asking was there weather-related issues?
13 Is that the question?

14 Q. Well, I mean I kind of liked it the way I asked
15 it but I'll try it again.

16 Was there a time that you learned that the
17 Lipari mine that supplied the ACC coal could not
18 supply because of weather issues or road
19 closures?

20 A. Yes, because of the massive flooding in eastern
21 Kentucky.

22 Q. All right. How did you learn that that Lipari
23 mine was no longer able to supply?

24 A. Because I live in southeastern Kentucky. I know
25 that we have employees in that area. We have

1 mines in that area. We, it made national news.
2 It was a record-breaking flood, biggest in the
3 history of the State of Kentucky.

4 Q. All right. So fair to say you knew based on
5 common knowledge that, about the extent of the
6 devastation that Lipari would not be able to
7 supply; is that correct?

8 A. Yes.

9

- - - -

10 (Thereupon, Defendant's Exhibit 14, subpoena,
11 was marked for purposes of identification.)

12

- - - -

13 Q. All right. Do you see a document on your screen
14 marked Exhibit 14?

15 A. Yes.

16 Q. And let me ask about the second page of that
17 document.

18 Oh, B&W like B ampersand W. Not B, N the
19 letter, W. Is that correct from your earlier
20 testimony?

21 A. That's correct. The way it's listed there is
22 correct.

23 Q. Okay. Got it.

24 All right. So my question is, the second
25 page of what I marked as Exhibit 14, take a look

1 at it but let me know if Fire Star received a
2 communication from B&W Resources, Inc. that is
3 like the one shown in Exhibit 14.

4 A. Yes. That -- is the question is that from B&W?
5 Yes.

6 Q. Did you -- yes, did Fire Star receive a letter
7 like this?

8 A. You would have to ask Tim about that. I didn't,
9 I wasn't on it. Yeah, I don't know.

10 Q. Does what's reflected or what's written by Lipari
11 in Exhibit 14, does this, does this comport with
12 your understanding of the impact of the flooding
13 on Lipari's mine that supplied ACC?

14 A. Yes.

15 Q. Okay. Did you yourself communicate with Lipari
16 about the impact of the flooding on their mine
17 that supplied ACC?

18 A. Yes. As we did all the mines, yeah.

19 Q. And what communications did you have with them
20 about that specifically with regard to the mine
21 that supplied ACC?

22 A. Just verbal communications.

23 Q. And what did they tell you?

24 A. Basically the same thing as the letter is saying.
25 I mean, it was national news. It wasn't, it

1 wasn't a, it wasn't a surprise or anything. I
2 mean there was, you know, we had employees that
3 were affected by it. Truck drivers. I mean it
4 was a tragedy.

5 Q. Okay. All right. Well, listen. Thank you for
6 your time. I know -- well, I'll just leave it at
7 that. Thank you for your time.

8 I don't have any further questions. I'm not
9 sure if Barry will have questions for you.

10 MR. HUNTER: Nope. I'm good.

11 MS. RATHKE: All right. We can
12 order in whatever the ordinary course is
13 for you, Pam, and before we go over that, I
14 suppose I should say let's go off the
15 record.

16 THE VIDEOGRAPHER: This is the
17 videographer. This will mark the end of
18 Media Unit Number 2 and the deposition of
19 Dwayne Jones. We are going off the record
20 at 12:43.

21 MR. HUNTER: I'm going to
22 disconnect but we'd just like an electronic
23 copy whenever, in the regular course.

24 - - - -

25 (No review requested.)

(Deposition concluded at 12:43 p.m. EDT)

- - - -

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C E R T I F I C A T E

The State of Ohio,) SS:
County of Cuyahoga.)

I, Pamela S. Greenfield, a Notary Public within and for the State of Ohio, authorized to administer oaths and to take and certify depositions, do hereby certify that the above-named witness was by me, before the giving of their deposition, first duly sworn to testify the truth, the whole truth, and nothing but the truth; that the deposition as above-set forth was reduced to writing by me by means of stenotypy, and was later transcribed into typewriting under my direction; that this is a true record of the testimony given by the witness; that no review of the transcript was requested by the deponent or any party; that said deposition was taken at the aforementioned time, date and place, pursuant to notice or stipulation of counsel; and that I am not a relative or employee or attorney of any of the parties, or a relative or employee of such attorney, or financially interested in this action.

IN WITNESS WHEREOF, I have hereunto set my hand and seal of office, at Cleveland, Ohio, this 1st day of September, 2023.



Pamela S. Greenfield, CRR, RDR
Notary Public, State of Ohio
My commission expires July 2, 2028

Veritext Legal Solutions
1100 Superior Ave
Suite 1820
Cleveland, Ohio 44114
Phone: 216-523-1313

September 5th, 2023

To: Barry D. Hunter

Case Name: American Colloid Company v. Fire Star Energy Resources LLC

Veritext Reference Number: 6029350

Witness: Dwayne Jones Deposition Date: 8/17/2023

Dear Sir/Madam:

Enclosed please find a deposition transcript. Please have the witness review the transcript and note any changes or corrections on the included errata sheet, indicating the page, line number, change, and the reason for the change. Have the witness' signature notarized and forward the completed page(s) back to us at the Production address shown above, or email to production-midwest@veritext.com.

If the errata is not returned within thirty days of your receipt of this letter, the reading and signing will be deemed waived.

Sincerely,
Production Department

NO NOTARY REQUIRED IN CA

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DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 6029350
CASE NAME: American Colloid Company v. Fire Star Energy
Resources LLC

DATE OF DEPOSITION: 8/17/2023

WITNESS' NAME: Dwayne Jones

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have made no changes to the testimony
as transcribed by the court reporter.

Date Dwayne Jones
Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;
They signed the foregoing Sworn
Statement; and
Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal
this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 6029350

CASE NAME: American Colloid Company v. Fire Star Energy
Resources LLC

DATE OF DEPOSITION: 8/17/2023

WITNESS' NAME: Dwayne Jones

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have listed my changes on the attached
Errata Sheet, listing page and line numbers as
well as the reason(s) for the change(s).

I request that these changes be entered
as part of the record of my testimony.

I have executed the Errata Sheet, as well
as this Certificate, and request and authorize
that both be appended to the transcript of my
testimony and be incorporated therein.

Date

Dwayne Jones

Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;
They have listed all of their corrections
in the appended Errata Sheet;
They signed the foregoing Sworn
Statement; and
Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal
this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

ERRATA SHEET

VERITEXT LEGAL SOLUTIONS MIDWEST

ASSIGNMENT NO: 6029350

PAGE/LINE(S) /	CHANGE	/REASON
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Date _____ Dwayne Jones

SUBSCRIBED AND SWORN TO BEFORE ME THIS _____

DAY OF _____, 20____.

Notary Public

25	Commission Expiration Date
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[30 - administer]

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Ohio Rules of Civil Procedure

Title V. Discovery

Rule 30

(e) Submission to Witness; Changes; Signing.

When the testimony is fully transcribed, the deposition shall be submitted to the witness for examination and shall be read to or by the witness, unless examination and reading are waived by the witness and by the parties. Any changes in form or substance that the witness desires to make shall be entered upon the deposition by the officer with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness, unless the parties by stipulation waive the signing or the witness is ill, cannot be found, or refuses to sign. The witness shall have thirty days from submission of the deposition to the witness to review and sign the deposition. If the deposition is taken within thirty days of a trial or hearing, the witness shall have seven days from submission of the deposition to the witness to review and sign the deposition. If the trial or hearing is scheduled to commence less than seven days before the deposition is submitted to the witness, the court may establish a deadline for the

witness to review and sign the deposition. If the deposition is not signed by the witness during the period prescribed in this division, the officer shall sign it and state on the record the fact of the waiver or of the illness or absence of the witness or the fact of the refusal to sign together with the reason, if any, given therefor; and the deposition may then be used as fully as though signed, unless on a motion to suppress the court holds that the reasons given for the refusal to sign require rejection of the deposition in whole or in part.

DISCLAIMER: THE FOREGOING CIVIL PROCEDURE RULES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY. THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE STATE RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

VERITEXT LEGAL SOLUTIONS

COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

Veritext Legal Solutions is committed to maintaining the confidentiality of client and witness information, in accordance with the regulations promulgated under the Health Insurance Portability and Accountability Act (HIPAA), as amended with respect to protected health information and the Gramm-Leach-Bliley Act, as amended, with respect to Personally Identifiable Information (PII). Physical transcripts and exhibits are managed under strict facility and personnel access controls. Electronic files of documents are stored

in encrypted form and are transmitted in an encrypted fashion to authenticated parties who are permitted to access the material. Our data is hosted in a Tier 4 SSAE 16 certified facility.

Veritext Legal Solutions complies with all federal and State regulations with respect to the provision of court reporting services, and maintains its neutrality and independence regardless of relationship or the financial outcome of any litigation. Veritext requires adherence to the foregoing professional and ethical standards from all of its subcontractors in their independent contractor agreements.

Inquiries about Veritext Legal Solutions' confidentiality and security policies and practices should be directed to Veritext's Client Services Associates indicated on the cover of this document or at www.veritext.com.